

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT  
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,  
d/b/a COLONIAL MOBILE MANOR,  
Plaintiff,

vs.

Case No. 2024-CC-

PATRICIA A. EVERINGHAM, LISA  
EVERINGHAM and ANY UNKNOWN  
PARTY(s) IN POSSESSION,  
Defendants.

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**COMPLAINT (CIVIL ACTION) SEEKING EVICTION AND DAMAGES**

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, d/b/a COLONIAL MOBILE MANOR, sues the Defendants, PARTICIA A. EVERINGHAM, LISA EVERINGAM and ANY UNKNOWN PARTY(s) IN POSSESSION, of certain premises more fully described below, and alleges:

**COUNT I**  
**ACTION FOR POSSESSION**

1. This is an action for removal of a mobile home park lot tenant and possession of the real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.
2. Plaintiff is a limited liability company owning and operating a mobile home park located in Manatee County, Florida.
3. Defendants, PATRICIA A. EVERINGHAM and LISA EVERINGHAM, are natural persons at all times relevant believed to co-own and reside in a mobile home located at 900 - 9<sup>th</sup> Avenue East, LOT #142, Palmetto, Manatee County, Florida, 34221.
4. Defendant, ANY UNKNOWN PARTY(s) IN POSSESSION, may reside on the real property located at 900 9<sup>th</sup> Avenue East, LOT #142, Palmetto, Manatee County, Florida, 34221, but if so, does without the consent of the Plaintiff.

5. Defendants, PATRICIA A. EVERINGHAM and LISA EVERINGHAM, are the co-record owners of the mobile home located on the real property on 900 9<sup>th</sup> Avenue East, Lot #142, Palmetto, Manatee County, Florida, 34221.

6. Plaintiff owns, in fee simple, the real property located at 900 - 9<sup>th</sup> Avenue East, Palmetto, Florida, 34221, which has historically been known as COLONIAL MOBILE MANOR.

7. The residents of the community, including Defendants, own their own mobile homes and lease their respective lots from Plaintiff; therefore, the landlord/tenant relationship between Plaintiff and the Defendant in this cause is governed by Florida Statutes Chapter 723. A copy of the Prospectus approved by the Florida Department of Business and Professional Regulations is incorporated into this complaint and attached as Exhibit "A".

8. Plaintiff, as landlord, leased to Defendants, PATRICIA A. EVERINGHAM and LISA EVERINGHAM, LOT #142, of the above stated mobile home park at a monthly rental fee.

9. For the year, 2024, the monthly rent is the sum of \$771.15.

10. Defendants, PATRICIA A. EVERINGHAM and LISA EVERINGHAM, are in default of the Rental Agreement with Plaintiff by failure to pay the total sum of \$2,448.45 as of August 20, 2024, which includes a late fee.

11. On August 20, 2024, Plaintiff served on Defendants, PATRICIA A. EVERINGHAM, LISA EVERINGHAM and ANY UNKNOWN PARTY(s) IN POSSESSION, pursuant to Fla. Stat. §723.061(4) by posting on the premises of 900 9<sup>th</sup> Avenue East, Lot #142, Palmetto, FL 34221, a Demand for Payment of Lot Rental Amount demanding rent payment, and notified the Defendants that if she failed to timely pay the rent due, that the Plaintiff would evict the Defendants, pursuant to Fla. Stat. §723.061. A copy of this Notice is attached and marked Plaintiff's Exhibit "B".

12. On August 20, 2024, Plaintiff also served on Defendants, PATRICIA A. EVERINGHAM, LISA EVERIGHAM and ANY UNKNOWN PARTY(s) IN POSSESSION, the Demand for

Payment of Lot Rental Amount, by certified mail return receipt requested, to the last known address of the Defendants, pursuant to Fla. Stat. § 723.061(4).

13. The nonpayment default has continued for more than five days after delivery of the written and posted demand to Defendants, as a result of which the Plaintiff is entitled to a judgment for eviction against the Defendants.

14. ANY UNKNOWN PARTY(s) IN POSSESSION may reside or have an interest in LOT #142 of COLONIAL MANOR MHC HOLDINGS, LLC but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

15. Pursuant to the lease and Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of attorney fees.

16. Plaintiff is entitled to the summary procedure of Section 51.011 of the Florida Statutes.

17. Plaintiff has retained the law firm of William C. Price, III, P.A., to represent it in this action and is obligated to pay its attorneys a reasonable fee for their services.

18. Pursuant to Fla. Stat. §723.084 the prevailing party in this action to evict the Defendant is entitled to recover its costs and attorney fees.

19. The total lot rental amounts due as of August 20, 2024, is due, which must be paid into the registry of the Court, is \$2,448.45 plus \$771.15 due each month this action is pending.

**WHEREFORE**, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, PARTICIA A. EVERINGHAM, LISA EVERINGHAM and ANY UNKNOWN PARTY(s) IN POSSESSION, and such other and further relief as the Court may deem proper.

**COUNT II**  
**ACTION FOR DAMAGES (RENTAL)**

20. This is an action seeking less than \$15,000.00 excluding costs, interest and attorney fees.

21. Plaintiff re-alleges the facts contained within paragraphs 1 through 19 as though fully set forth herein.

22. Defendant, PATRICIA A. EVERINGHAM and LISA EVERINGHAM, owes the Plaintiff rent as of the date of filing this complaint, plus interest, costs and a reasonable attorney fee.

**WHEREFORE**, Plaintiff requests this Honorable Court enter a judgment against Defendants, PATRICIA A. EVERINGHAM and LISA EVERINGHAM, for damages, costs, and attorney's fees.

**CERTIFICATE OF SERVICE**

**I HEREBY CERTIFY** that a true copy of the foregoing Complaint Seeking Eviction, Damages and Other Relief has been furnished to a private process server for service upon the Defendants, PARTICIA A. EVERINGHAM, LISA EVERINGHAM and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9<sup>th</sup> Avenue East, LOT #142, Palmetto, Florida, 34221, on this 28<sup>th</sup> day of August, 2024.

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